

Attorneys' Fees

Paragraph 22 of the settlement agreement provides that the prevailing party in any legal action to enforce the agreement is entitled to recover their reasonable attorney's fees. The court finds plaintiffs are entitled to attorneys' fees as the prevailing party on this motion. Plaintiffs are awarded reasonable attorneys' fees in the amount of \$4,700.

Conclusion

Plaintiffs' motion is granted in part. Defendant is ordered to comply with Paragraphs 4, 5, 13, 15, and 20 of the settlement agreement within 60 days of service of notice of entry of order. The motion is otherwise denied. Plaintiffs are awarded attorneys' fees in the amount of \$4,700.

6. S-CV-0049529 Los Lagos Estates v. Le Garden Ha

The motion to release funds is dropped from calendar as moot as it was previously advanced and heard. (Law and Motion Minutes, Jan. 27, 2026 and Feb. 24, 2026.)

7. S-CV-0050671 Bente, Jennifer v. Granite Wellness Centers

Motion for Final Approval

Plaintiffs move for finally approving the parties' class action settlement. The motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by two court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Additionally, the moving papers indicate the 90-day deadline for class members to submit a claim will expire on April 27, 2026. The court will need updated information as to the total number of claims received after the expiration of the 90-day claim period.

The moving papers also indicate the settlement administrator has incurred \$42,553.66 in expenses and estimates the final overall expenses will be approximately \$84,897.21. However, this is significantly more than the amount the court preliminarily approved, which was \$58,575 or, if reminder notices were required, then \$64,100. The court intends to either (1) limit the settlement administration costs to those preliminarily approved or (2) take the difference in the amount claimed from the amount preliminarily approved from the attorneys' fees provided for in the parties' settlement, unless plaintiffs show cause why the court should change the amount of settlement administration costs. Plaintiffs may file and serve a supplemental brief on this issue, not to exceed 10 pages.

The motion for final approval is continued to **June 23, 2026 at 8:30 a.m. in Department 42**. Plaintiff shall file and serve notice of continued hearing and updated information

from the settlement administrator as to the total number of claims received during the 90-day claim period.

Motion for Attorneys' Fees, Costs, and Service Award

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**.

Plaintiffs are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

The motion for attorneys' fees, costs, and service award is continued to be heard together with the motion for final approval on **June 23, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted.

8. S-CV-0051883 Victoria Figone v. Moana Beach Property Owners Assn.

Motion for Summary Adjudication

Plaintiff Victoria Figone ("Plaintiff") moves for summary adjudication on her sixth cause of action for declaratory relief (violation of Civil Code section 4765) against the Moana Beach Property Owners Association, Inc. ("Defendant" or "Association"), seeking a determination that the Association's denial of her accessory dwelling unit ("ADU") application is invalid as a matter of law. Plaintiff contends that, at the time the Association reviewed and denied her ADU application, it had not adopted or distributed written architectural review procedures as required by Civil Code section 4765 and its own governing documents. Plaintiff argues that this lack of statutory compliance deprived the Association of authority to act, such that the denial of her application must be declared void without regard to the reasonableness of the decision. The Defendants oppose the motion.

Preliminary Issues—Requests for Judicial Notice and Evidentiary Rulings

The court rules as follows on Plaintiff's Requests for Judicial Notice:

- (1) The request is granted as to Exhibits 23 (Complaint) and 24 (Answer) with respect to their existence and filing, but not as to the truth of the matters asserted therein. (Evid. Code § 452(d).)
- (2) The request is granted as to Exhibit 25 (CC&Rs) as a recorded governing document; the court takes notice of the document and its legal effect, but not of any disputed factual interpretations. (Evid. Code § 452(c) and (h).)
- (3) The request is granted as to Exhibits 26 and 29 (Tahoe Regional Planning Agency ("TRPA") Permits) as official acts of governmental agency; the court takes notice of the existence and issuance of the permits, but not of any factual findings or conclusions contained therein. (Evid. Code § 452(c).)
- (4) The request is granted in part as to Exhibits 27 and 28 (TRPA Site Plans and Architectural Sheets); the court takes notice that these documents were submitted